writer is there, the individual can be secured under the Preventive Detention Act. So, if you want to prevent a person, or group of persons from committing acts which you consider to be against the interests of public order, you are already clothed with sufficient authority to do so.

Mr Chairman: I think that the Preventive Detention Act has laid down certain conditions under which alone persons could be detained, and these persons cannot be covered.

Dr S.P. Mookerjee: It is not the Prime Minister's intention nor Government's intention that men who are innocent should be detained. If there is some case against any one you need not even present it in the court. The only thing you are to do is to satisfy an Advisory Council that you have sufficient material which would justify you to take the person in custody and detain him as long as you like. There is no limit imposed under the provisions of the Constitution. That is the present law.

An Hon. Member: Do you advise that?

Dr S.P. Mookerjee: I am not advising it. The power is there. The Prime Minister takes upon himself the responsibility …

Pandit Thakur Das Bhargava (Punjab): Can that man be punished by the Court?

Dr S.P. Mookerjee: If you detain [a] man as long as he lives, obviously it is a very severe punishment you can give. Now that is one part of the problem. The next is that supposing a man commits an act, makes a speech and some overt act is done, then what happens? The provisions of the ordinary Penal Code or the criminal law of the land are applied. The man may be bound down under the criminal law. He makes a speech; he is arrested and put in jail. That is being done. If your intention is only to take action against a small group which is spreading venom and vulgarity